IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.146

C.P.(CAA)/37(AHM)2022 in C.A.(CAA)/15(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:

Saurashtra Infra And Power Pvt Ltd **.....Applicant**
Saurashtra Ferrous Pvt Ltd
Saurashtra Fuels Pvt Ltd **.....Respondent**

Order delivered on: 12/12/2022

Coram:

Dr. Madan B. Gosavi, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for the pronouncement of the order. The order is pronounced in the open court, vide separate sheet.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

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NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

CP (CAA) No.37/NCLT/AHM/2022 in
CA(CAA)No.15/NCLT/AHM/2022

[Application under Sections 230-232 and other applicable provisions of the Companies Act, 2013]

Scheme of Amalgamation

of

Saurashtra Infra and Power Private Limited
(Transferor Company 1)

and

Saurashtra Ferrous Private Limited
(Transferor Company 2)

with

Saurashtra Fuels Private Limited
(Transferee Company)

and

Their respective Shareholders and Creditors

Order delivered on 12.12.2022.

Coram: Dr.Madan Bhalchandra Gosavi-Member (Judicial)
Kaushalendra Kumar Singh-Member(Technical)

In the matter of:

Saurashtra Infra and Power Private Limited
(CIN:U45400GJ2005PTC097906)

A company registered under the Companies Act,1956
Having its registered office at
202-Sarthik II, Near Kiran Motors,
Opp. Rajpath Club, Sarkhej–Gandhinagar Highway,
Ahmedabad– 380015, Gujarat.

...Petitioner Company No.1/
Transferor Company No. 1

Saurashtra Ferrous Private Limited
(CIN:U27100GJ2005PTC079361)

A company registered under the Companies Act,2013
Having its registered office at
202-Sarthik II, Near Kiran Motors,
Opp. Rajpath Club, Sarkhej–Gandhinagar Highway,
Ahmedabad – 380015, Gujarat.

...Petitioner Company No.2/
Transferor Company No. 2

Saurashtra Fuels Private Limited
(CIN:U23200GJ1993PTC097907)

A company registered under the Companies Act,1956
Having its registered office at
202-Sarthik II, Near Kiran Motors,
Opp. Rajpath Club, Sarkhej–Gandhinagar Highway,
Ahmedabad – 380015, Gujarat.

...Petitioner Company No.3/
Transferee Company

Appearance:

Mr. Navin Pahwa, Sr. Advocate, along with Mr. Ravi Pahwa, Advocate, on behalf of Thakkar & Pahwa, for the Applicant. Mr. Shiv Pal Singh, Assistant Director (NWR) on behalf of the RD. Ms. Kinjal Trivedi, Advocate, on behalf of Ms. Maithili D. Mehte, Advocate, for the Income Tax Department

ORDER

1. The present joint Company Petition has been filed by the Petitioner Companies under Sections 230-232 and other applicable provisions of the Companies Act, 2013, seeking approval of the Scheme of Amalgamation of M/s. Saurashtra Infra and Power Private Limited ("Transferor Company 1") and M/s. Saurashtra Ferrous Private Limited ("Transferor Company 2") with M/s. Saurashtra Fuels Private Limited ("Transferee Company") with effect from 1st April 2021, being the Appointed Date as mentioned in the Scheme.

2. An Affidavit in support of the above joint petition has been sworn by Ms. Parvati Dilip on behalf of the Petitioner Companies who is the authorized representative of the Petitioner Companies, and the same is annexed with the application.

3. The Petitioner Companies had filed a joint Company Application before this Tribunal being CA (CAA) No. 15/NCLT/AHM/2022 inter alia seeking directions to hold and convene the meetings of Equity Shareholders of all the Petitioner Companies; seeking directions to hold and convene the meetings of Secured Creditors of Petitioner Company No.3; seeking directions to hold and convene the meetings of Unsecured Creditors of Petitioner Company No.2 and Petitioner Company No.3, while seeking declaration that as there are no secured creditors in Petitioner Company No.1 and Petitioner Company No.2 and since there are no unsecured creditors in Petitioner Company No.1, there is no need to hold and convene the meetings of these stake holders.

4. By an order dated 02.03.2022 made in CA (CAA) No.15/NCLT/AHM/2022, this Tribunal directed to hold and convene

the meeting of Equity Shareholders of all the Petitioner Companies; to hold and convene the meetings of Secured Creditors of Petitioner Company No.3 and to hold and convene the meetings of Unsecured Creditors of Petitioner Company No.2 and Petitioner Company No.3. This Tribunal further declared that that as there are no secured creditors in Petitioner Company No.1 and Petitioner Company No.2 and since there are no unsecured creditors in Petitioner Company No.1, there is no need to hold and convene the meetings of these stake holders. This Tribunal further directed the Applicant Companies to serve Notice of the Scheme in compliance with Section 230(5) of the Companies Act, 2013 in the Form 'CAA-3' along with disclosures mentioned under Rule 6 to (i) the Central Government through the Regional Director, North Western Region, (ii) the Registrar of Companies, Gujarat, (iii) the Income Tax Authorities; and (iv) the Official Liquidator (in respect of the Transferor Companies) stating that representations, if any, to be made within a period of 30 days from the date of receipt of such notice, and in case no representation is received by this Tribunal within the stipulated period of 30 days, it should be presumed that the authorities have no representation to make.

5. It is submitted that in compliance of the order dated 02.03.2022, the Petitioner Companies have served notices to the Central Government through the Regional Director, North-Western Region, the Registrar of Companies, Gujarat, and the Official Liquidator (in respect of the Transferor Companies) on 6th April, 2022, and the concerned Income Tax Authorities on 1st April, 2022. The Petitioner Companies have filed their affidavits of service, all dated 12.04.2022.

6. The Petitioner Companies have jointly filed the present Company Petition being CP (CAA) No.37 of 2022 before this Tribunal seeking sanction of the Scheme.

7. This Tribunal by order dated 21.06.2022, admitted the petition and directed for publication of hearing in "Business Standard", (English Edition) and in "Sandesh" (Gujarati Edition) not less than ten days before the date fixed for hearing, calling for objections, if any, on or before the date of hearing. This Tribunal also directed to issue a notice of hearing of the petition to (i) Central Government through Regional Director, North-Western Region, (ii) Registrar of Companies, Gujarat (iii) concerned Income Tax Authorities; and (iv) the Official Liquidator.

8. Pursuant to the order dated 21.06.2022 passed by this Tribunal, the Petitioner Companies have published the notice of hearing of the company petition in "Business Standard", (English Edition) and in "Sandesh" (Gujarati Edition) on 30.06.2022. The affidavit of service, on behalf of the Petitioner Companies, dated 18.07.2022, has been filed confirming the publication of the notice in the newspapers as directed and also the notice of hearing of the petition being served upon the concerned statutory authorities.

9. In response to the notice served upon the Regional Director (RD) and RoC, a common Representation was filed by the RD, North-Western Region and RoC dated 07.07.2022. The observation made by the RD in various points of its report i.e. (1), 2(a), 2(b),….,2(k) and also of RoC are summarized here under:-

i) The first observation is with regards to Compliance of the provision of Sec. 232(3)(i) of the Companies Act, 2013 ;

ii) The second observation is with regards to Compliance of Accounting Standard-14 ;

iii) The third observation is with regards to Compliance of FEMA and RBI Guidelines by the Petitioner Transferor Companies and Transferee Company.

iv) RoC has observed that though the Petitioner Company No.2 has mentioned that there are no secured creditors in the MCA Portal, there are secured charges in favour of two secured lenders;

v) ROC has further observed that though the Petitioner Company No.3 has disclosed that there are 5 secured creditors, the MCA Portal is showing that there are open secured charges in favour of two secured lenders. Thus, the Petitioner Company No.3 be directed to comply with the provisions of Section 77 of the Companies Act, 2013.

10. The Petitioner Companies have filed common affidavit dated 24.8.2022 with the following response:-

i. With regards to first observation of the RD, it is submitted that the the petitioner companies undertake to comply with the provisions of Section 232(3)(i) of the Companies Act, 2013;

ii. With regards to second observation of the RD, it is submitted that the petitioner companies undertake to comply with the Accounting Standard-14;

iii. With regards to third observation, it is submitted that the petitioner companies undertake to comply with the provisions of FEMA and RBI Guidelines, to the extent applicable;

iv. With regards to observations of RoC, it is stated that the Petitioner Company No.2 has already settled with both the Secured Lenders whose charge is shown in the MCA portal. The Petitioner Company no.2 has also annexed a certificate of a Chartered Accountant certifying this aspect. It is further submitted that the Petitioner Companies undertake to comply with the provisions of Section 77 of the Companies Act, 203.

11. In response to the notice served upon the Official Liquidator, OL has made the following observations in relation to Petitioner Company No.1 and Petitioner Company No. 2 vide letter dated 23.6.2022.

i. The first observation is with regards to Compliance of FEMA Regulations;

ii. The second observation is with regards to effect of contingent liabilities;

iii. The third observation is with regards to increase in authorised share capital;

iv. The fourth observation is with regards to submission of certificate under Section 133 of the Companies Act, 2013;

v. The fifth observation is with regards to preserve books of account;

12. The Petitioner Company No.1 and Petitioner Company No. 2 have filed affidavit dated 29.8.2022 with the following response:-

i. With regards to first observation, it is submitted that the Petitioner Company No.1 and 2 undertake to comply with the FEMA Regulations.

ii. With regards to second observation, it is submitted that the contingent liabilities will be transferred to the Petitioner Transferee Company upon sanction of the Scheme by this Tribunal.

iii. With regards to third observation, it is submitted that the Petitioner Company no.1 and Petitioner Company no. 2 have reproduced the amended Clause V of Increase in Authorised Share Capital in the affidavit;

iv. With regards to fourth observation, it is submitted that there is no requirement of certificate under Section 133 of the Companies Act, 2013 in respect of Transferor Company as upon sanction of the Scheme of Amalgamation by this Hon'ble Tribunal, the Transferor Company would be dissolved without winding up and no accounting treatment would be there.

v. With regards to fifth observation, it is submitted that the Petitioner Transferee Company undertakes to preserve the books of account, papers and records and shall not dispose the same without prior permission of Central Government as required under Section 239 of the Act.

13. In response to the notice served upon the Income Tax Department, the Income Tax Department has made a common representation vide letter dated 16.9.2022 raising certain demands but has not raised any objection on the merits of the Scheme.

14. The Petitioner Companies have filed common affidavit dated 17.10.2022 with the following response:-

Petitioner Company No.1

i. As regards the demand of Rs. 5,67,847/- made under Section 234-D of Income Tax Act, 1961 for AY 2017-18 against Petitioner Company No.1, the Petitioner Company No.1 has filed Appeal before the Ld. CIT (A) in Form 35 and the said appeal is pending for its adjudication.

ii. As regards the demand of Rs.1,62,24,212 made under Section 143(3) of the Act for AY 2017-18, the Petitioner Company No.1 has filed Appeal before the Ld. CIT (A) in Form 35 and has paid tax of Rs. 27,01,000/- for the said AY-2017-18. The said appeal is pending for its adjudication.

iii. As regards the demand of Rs.17,210 made under Section 143(3) of the Act for AY 20167-17, the Petitioner Company No.1 has filed a rectification application for short credit of

TDS before the Ld. Assessing Officer and the same is pending for its adjudication.

iv. As regards the demand of Rs.1,04,55,060 made under Section 147 of the Act for AY 2012-13, the Petitioner Company No.1 has filed Appeal before the Ld. CIT (A) in Form 35 and has paid tax of Rs. 20,92,012/- for the said AY-2012-13. The said appeal is pending for its adjudication.

Petitioner Company No.2

v. As regards the demand of Rs. 16,98,490/- made u/s. 154 of Income Tax Act, 1961 for AY 2009-10 against Petitioner Company No.2, the Petitioner Company No.2 has filed Appeal before the Ld. CIT (A) in Form 35 and the said appeal is pending for its adjudication.

vi. So far as Petitioner Company No.3 is concerned, as per the Report, there is no amount outstanding against the Petitioner Company No.3 i.e. Transferee Company.

It is further submitted that without prejudice to the above, Clause 8 of the proposed Scheme clearly provides that any liability of the Transferor Companies shall be the liability of the Transferee Company.

15. No representations have been received from any other statutory authorities.

16. Heard Mr. Navin Pahwa, Sr. Advocate, along with Mr. Ravi Pahwa, Advocate for the Petitioner Companies and perused the

documents on records. Considering the entire facts and circumstances of the case and on perusal of the Scheme, the documents produced on record, the representation made by the Regional Director, Registrar of Companies, Official Liquidator and Income Tax Department and the reply thereof by the Petitioner Companies, this Tribunal is of the opinion that the requirements of the provisions of sections 230 and 232 of the Companies Act, 2013 are satisfied. The reply given by the Petitioner Companies to the representation of the Regional Director, Registrar of Companies and Official Liquidator satisfies the observations of the Regional Director and Registrar of Companies. The Scheme appears to be genuine and bonafide and in the interest of the shareholders and creditors. It is further submitted that all statutory obligations under all applicable laws shall be complied with. Consequently, the Company Petition No. C.P. (CAA) No. 37 of 2022 is allowed, the scheme envisaging Scheme of Amalgamation between Saurashtra Infra and Power Private Limited and Saurashtra Ferrous Private Limited with Saurashtra Fuels Private Limited and their respective shareholders and creditors is hereby sanctioned. It is declared that the sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the Scheme.

17. The petitioner companies have placed on record a copy of the Valuation Report dated 01.11.2021 issued by Mr. Harshit Shah, Registered Valuer.

18. The Petitioner Companies have stated in the Petition that no inspection or investigation has been instituted or is pending against any of the petitioner companies under the provisions of the

Companies Act, 2013. No winding up petition is pending against the Petitioner Companies.

19. In compliance with the proviso to clause (e) of sub-section (7) of Section 230 of the Companies Act, 2013, certificate from the statutory auditor of the Petitioner Transferee Company dated 09.11.2021, is placed on record confirming that the accounting treatment as proposed under the Scheme is in conformity with the applicable Accounting Standards prescribed under section 133 of the Companies Act, 2013.

20. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioners.

21. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

22. This Tribunal orders as under:-

ORDER

i. The Scheme of Amalgamation as annexed herewith as Annexure-A is hereby sanctioned and is declared that the same shall be binding on the petitioner companies and their shareholders and creditors and all concerned under the Scheme;

ii. The Transferor Companies shall be dissolved without winding up and the Board of Directors and any committees thereof of the Transferor Companies shall without any further act, instrument or deed shall stand dissolved;

iii. Upon this Scheme becoming effective and in consideration for amalgamation of the Tranferor Company I and Tramiferor Company 2 with the Transferee Company, the Transferce Company shall without any further application or deed, issue and allot to the shareholders of the Transferor Company 1 and Transferor Company 2, holding fully paid up shares in the Transferor Company 1 and Transferor Company 2 and whose names appears in the Register of Members of the Transferor Company 1 and Transferor Company 2 as on the Effective Date or his/her/its heirs, executors, administrators or the successors in title, as may be recognised by the Board of Directors of the Transferee Company, fully paid up equity shares in the following fair share swap ratio:

To the shareholders of Transferor Company 1-

"10 (Ten) fully paid up equity shares of INR 10 (Indian Rupees Ten only) of the Transferee Company shall be issued and allotted for every 366 (Three Hundred and Sixty Six) equity shares of INR 10/- (Indian Rupees Ten only) each held in the Transferor Company 1"

To the shareholders of Transferor Company 2-

"10 (Ten) fully paid up equity shares of INR 10/- (Indian Rupees Ten only) of the Transferee Company shall be issued and allotted for every 1,040 (One thousand and Forty) equity shares of INR 1/- (Indian Rupees One only) each held in the Transferor Company 2."

iv. All the property annexed herewith as **"Annexure B"**, right and powers of the Transferor Companies specified in the schedule hereto and all the other property, rights and powers of the Transferor Companies be transferred without further act or deed to the Transferee Company in accordance with the Scheme and accordingly the same shall pursuant to Section 232 of the Act, shall stand transferred to and vest in the Transferee Company in accordance with the Scheme for all the estate and interest of the Transferor Companies therein but subject nevertheless to all charges now affecting the same.

v. All licenses, permissions, permits, quotes, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, other benefits or privileges relating to the Transferor Companies stand transferred to and vested in the Transferee Company in accordance with the Scheme, without any further act or deed and be in full force and effect in favour of the Transferee Company, as if the same were originally given to, issued to or executed in favour of the Transferee Company. The Transferee Company shall be bound by

the terms thereof, the obligations and duties there under, and the rights and benefits under the same shall be available to the Transferee Company.

vi. All proceedings, if any, now pending or against the Transferor Companies be continued by or against the Transferee Company. All taxes paid or payable by all the Transferor Companies and all existing and future incentives, un-availed credits and exemption, benefit of carried forward losses and other statutory benefits, to which the Transferor Companies are entitled to, shall be available to and vest in the Transferee Company.

vii. All contracts, agreements, undertakings, insurance policies, bonds and all other instruments of whatsoever nature or description, of all the Transferor Companies, which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company in accordance with the Scheme and be in full force and effect in favour of the Transferee Company as the case may be and may be enforced by or against it as fully and effectually as if, instead of the Transferor Companies, the Transferee Company had been a party or beneficiary or obliged thereto.

viii. All workers / employees of all the Transferor Companies shall be deemed to become the workers /employees of the Transferee Company with effect from the Appointed Date, and shall stand absorbed in the Transferee

Company in accordance with the Scheme without any interruption of service and on term and conditions no less favourable than those on which they are engaged by the Transferor Companies, as on the Effective Date.

ix. Upon Scheme being effective, the Authorised Capital of the Transferor Companies shall be consolidated with the Authorised Capital of the Transferee Company as envisaged under the Scheme.

x. All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately.

xi. The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the Transferor Companies attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

xii. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xiii. The legal fees and expenses of the office of the Regional Director are quantified at Rs.15,000/-in respect of each of the petitioner companies. The said fees to the Regional Director shall be paid by the Transferee Company.

xiv. The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of the petitioner Transferor Companies. The said fees to the Official Liquidator shall be paid by the Transferee Company.

xv. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

23. Accordingly, the Company Petition CP(CAA) No.37 (AHM) of 2022 with CA(CAA) No.15(AHM) of 2022 is disposed of.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

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Annexure "A" Annexure I 231

SCHEME OF AMALGAMATION

OF

SAURASHTRA INFRA AND POWER PRIVATE LIMITED
('THE TRANSFEROR COMPANY 1')

AND

SAURASHTRA FERROUS PRIVATE LIMITED
('THE TRANSFEROR COMPANY 2')

WITH

SAURASHTRA FUELS PRIVATE LIMITED
('THE TRANSFEREE COMPANY')

AND

THEIR RESPECTIVE SHAREHOLDERS
(UNDER SECTIONS 230 TO 232 OF THE COMPANIES ACT, 2013)

I. PREAMBLE

The Scheme of Amalgamation ('Scheme') is presented under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013, for amalgamation of Saurashtra Infra and Power Private Limited ('the Transferor Company 1') and Saurashtra Ferrous Private Limited ('the Transferor Company 2') and (hereinafter together known as 'Transferor Companies'), with Saurashtra Fuels Private Limited ('the Transferee Company') and their respective shareholders.

II. RATIONALE FOR THE SCHEME

The Transferor Companies and the Transferee Company are part of the same group of entities. The proposed amalgamation will result in organizational efficiencies, reduction in overheads, administrative, operational costs and other

expenses and optimal utilization of various resources. It will prevent cost duplication and the resultant operations would be substantially cost-efficient.

III. The Scheme is divided into following parts:

- **Part A** – deals with definitions and Share Capital;
- **Part B** – deals with the Amalgamation of Saurashtra Ferrous Private Limited and Saurashtra Infra and Power Private Limited with Saurashtra Fuels Private Limited; and
- **Part C** - deals with General Terms and Conditions applicable to this Scheme.

PART - A

DEFINITIONS AND SHARE CAPITAL

1. DEFINITIONS

In this Scheme, unless inconsistent with the subject or context, the following expressions shall have the following meaning:

1.1 **"Act"** means the Companies Act, 2013, as applicable, and rules and regulations made thereunder and shall include any statutory modifications, amendments or re-enactment thereof for the time being in force.

1.2 **"Appointed Date"** means 1st day of April 2021 or such other date as may be fixed or approved by the National Company Law Tribunal at Ahmedabad or such other competent authorities.

1.3 **"Effective Date"** means the date on which the certified or authenticated copies of the order sanctioning this Scheme, passed by the National Company Law Tribunal at Ahmedabad are filed with the Registrar of Companies, Ahmedabad, Gujarat.

References in this Scheme to the date of **"coming into effect of this Scheme"** or **"upon the Scheme being effective"** shall mean the Effective Date.

1.4 **"NCLT" or "Tribunal"** means the National Company Law Tribunal at Ahmedabad.

1.5 **"Scheme" or "the Scheme" or "this Scheme"** means this Scheme of Amalgamation in its present form or with any modification(s) / amendment(s) made under Clause 15 of this Scheme as approved or directed by the NCLT.

1.6 **"Transferee Company"** means Saurashtra Fuels Private Limited, a company incorporated under the Companies Act, 1956 with CIN: U23200GJ1993PTC097907 and having its registered office at 202-Sarthik II, Near Kiran Motors Opp. Rajpath Club, Sarkhej–Gandhinagar Highway, Ahmedabad, Gujarat 380015.

1.7 **"Transferor Company 1"** means Saurashtra Infra and Power Private Limited, a company incorporated under the Companies Act, 1956 with CIN: U45400GJ2005PTC097906 and having its registered office at 202-Sarthik II, Near Kiran Motors Opp. Rajpath Club, Sarkhej–Gandhinagar Highway, Ahmedabad, Gujarat 380015.

1.8 **"Transferor Company 2"** means Saurashtra Ferrous Private Limited, a company incorporated under the Companies Act, 2013 with CIN: U27100GJ2005PTC079361 and having its registered office at 202-Sarthik II, Near Kiran Motors Opp. Rajpath Club, Sarkhej–Gandhinagar Highway, Ahmedabad, Gujarat 380015.

1.9 **"Transferor Companies"** means Transferor Company 1 and Transferor Company 2 as defined.

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act and other applicable laws, rules, regulations, bye-laws, as the case may be or any statutory modification or re-enactment thereof from time to time.

2. DATE OF TAKING EFFECT AND OPERATIVE DATE

The Scheme of Amalgamation as set out herein in its present form or with any modification(s) and amendment(s) made under Clause 15 of the Scheme shall be effective from the Appointed Date but shall be operative from the Effective Date.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Saurashtra Infra and Power Private Limited Ahmedabad

Saurashtra Ferrous Private Limited Ahmedabad

Saurashtra Fuels Private Limited Ahmedabad

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3. SHARE CAPITAL

3.1 The share capital of the Transferor Company 1 as on March 31, 2021 is as under:

Particulars	Amt (INR)
Authorised Capital	
1,65,00,000 Equity Shares of INR 10/- each	16,50,00,000
TOTAL	**16,50,00,000**
Issued, Subscribed & Paid up Capital	
90,24,848 Equity Shares of INR 10/- each	9,02,48,480
TOTAL	**9,02,48,480**

As on the date of the Scheme being approved by the Board of Directors of Transferor Company 1, there has been no change in the authorised, issued, subscribed and paid-up share capital of the Transferor Company 1.

3.2 The share capital of the Transferor Company 2 as on March 31, 2021 is as under:

Particulars	Amt (INR)
Authorised Capital	
20,00,00,000 Equity Shares of INR 1/- each	20,00,00,000
TOTAL	**20,00,00,000**
Issued, Subscribed & Paid up Capital	
1,98,39,640 Equity Shares of INR 1/- each	1,98,39,640
TOTAL	**1,98,39,640**

As on the date of the Scheme being approved by the Board of Directors of Transferor Company 2, there has been no change in the authorised, issued, subscribed and paid-up share capital of the Transferor Company 2.

3.3 The share capital of the Transferee Company as on March 31, 2021 is as under:

Particulars	Amt (INR)
Authorised Capital	
1,57,50,000 Equity Shares of INR 10/- each	15,75,00,000
12,50,000 Preference Shares of INR 100/- each	12,50,00,000
TOTAL	**28,25,00,000**
Issued, Subscribed & Paid up Capital	

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Saurashtra Infra and Power Private Limited Ahmedabad

Saurashtra Ferrous Private Limited Ahmedabad

Saurashtra Fuels Private Limited Ahmedabad

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88,45,101 Equity Shares of INR 10/- each	8,84,51,010
TOTAL	**8,84,51,010**

As on the date of the Scheme being approved by the Board of Directors of Transferee Company, there has been no change in the authorised, issued, subscribed and paid-up share capital of the Transferee Company.

PART B

AMALGAMATION OF TRANSFEROR COMPANIES WITH TRANSFEREE COMPANY

4. TRANSFER AND VESTING

4.1 With effect from the Appointed Date and upon the Scheme becoming effective, the entire business of the Transferor Companies shall, under the provisions of Sections 230 to 232 and other applicable provisions, if any, of the Act, and pursuant to the order of the Tribunal or other appropriate authority, if any, sanctioning the Scheme shall without any further act, deed, matter or thing, stand transferred to and vested in and/or deemed to be transferred to and vested in the Transferee Company so as to become the properties and liabilities of the Transferee Company in accordance with Section 230 to 232 of the Act.

4.2 Without prejudice to the generality of the above said Clause:

4.2.1. Subject to the provisions of this Scheme as specified hereinafter and with effect from the Appointed Date, the entire business of the Transferor Companies including all its respective properties and assets (whether real or personal, in possession or reversion, corporeal or incorporeal, tangible or intangible) of every kind and description and also including, without limitation, all the movable and immovable properties (whether owned, leased or licensed) along with all rights, title, interest attached to such immovable properties and other assets of the Transferor Companies comprising amongst others all plant and machinery, investments, office equipment, receivables, electrical installations, water connections, telephones, facsimile, telexes, e-mail, internet, leased line connections and installations and other communication facilities

and security deposits, business licenses, permits, authorisations, if any, rights and benefits of all agreements and all other rights and powers of every kind, nature and description whatsoever, privileges, liberties, easements, advantages, benefits and approvals obtained from any authority including but not limited to approval from revenue authorities, environment clearance certificate, no objection certificate, completion certificate, title clearance certificate issued by any competent authority, or obtained by virtue of any court decree or order, all records, files, papers, contracts, tenancy rights, statutory permissions, quotas, actionable claims, consents, to the extent applicable, from all applicable and competent authorities, cash on hand, all tax credits (including but not limited to advance tax, tax deducted at source, minimum alternate tax, value added tax, sales tax, service tax, goods & service tax, duties including custom duty etc.) and other taxes paid to the authorities, all earnest monies and/or deposits, brand names, trademarks, copy rights, all rights and interests or duties and obligations on property(ies) by virtue of contractual arrangement, allotment, grant, lease, possession or otherwise, benefits of all agreements, arrangements, deposits, loans, advances, recoverable and receivables, whether from government, semi-government, local authorities or any other person including customers, contractors or other counter parties, etc. shall, under the provisions of Sections 230 to 232 and other applicable provisions of the Act and pursuant to the order of the Tribunal and/or any other applicable authority, without further act, instrument or deed, be transferred and/or deemed to be transferred to and vested in the Transferee Company on a going concern basis so as to become the assets and liabilities of the Transferee Company as on Appointed Date.

4.2.2. In respect of all the movable assets owned by the Transferor Companies as on the Effective Date and the assets which are otherwise capable of transfer by physical delivery or endorsement and delivery or novation, including cash on hand, shall be so transferred to the Transferee Company and deemed to have been physically handed over by physical delivery or by endorsement and delivery, as the case may be, to the Transferee Company to the end and intent that the property and benefit therein passes to the Transferee Company with effect from the Appointed Date. Such delivery and transfer shall be made on or after the Effective Date as may be mutually agreed upon between the respective Board of Directors of the Transferee Company and the Transferor Companies.

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4.2.3. In respect of any assets owned by the Transferor Companies as on the Effective Date, other than those mentioned in Clause 4.2.2 above, including all documents, deeds, agreements, mortgages, pledges, guarantees, actionable claims, sundry debtors, outstanding loans, advances, whether recoverable in cash or kind or for value to be received and deposits, if any with the local and other authorities, bodies corporate, customers etc., the Transferor Companies shall, if so required by the Transferee Company, and the Transferee Company may, issue notices in such form as the Transferee Company may deem fit and proper stating that pursuant to the Tribunal having sanctioned this Scheme, the relevant debt, loan, advance or other asset, be paid or made good or held on account of the Transferee Company, as the person entitled thereto, to the end and intent that the right of the Transferor Companies to recover or realize the same stands transferred to the Transferee Company and that appropriate entries should be passed in their respective books to record the aforesaid changes.

4.2.4. With effect from the Appointed Date, all debts, liabilities, contingent liabilities, provisions, duties and obligations of every kind, nature and description of the Transferor Companies whether provided for or not in the books of the Transferor Companies, and all other liabilities which may accrue or arise after the Appointed Date but which relates to the period on or upto the Appointed Date shall, pursuant to the order of the Tribunal or such other competent authority as may be applicable under Section 232 and other applicable provisions of the Act, without any further act or deed, be transferred or deemed to have been transferred to and vested in and assumed by the Transferee Company, so as to become as on the Appointed Date, the liabilities and obligations of the Transferee Company which undertakes to meet, discharge and satisfy the same and it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities and obligations have arisen in order to give effect to the provisions of this Clause.

4.2.5. All existing securities, mortgages, charges, encumbrances, if any, as on the Appointed Date and those created by the Transferor Companies after the Appointed Date, over the assets of the Transferor Companies transferred to the Transferee Company shall, after the Effective Date, continue to relate and attach to such assets or any part thereof to which they are related or attached prior to the Effective Date. Such securities,

mortgages, charges, encumbrances or liens shall not relate or attach or extend to any of the other assets of the Transferee Company.

4.2.6. Any existing securities, mortgages, charges, encumbrances, if any, over the assets and properties of the Transferee Company or any part thereof which relate to the liabilities and obligations of the Transferee Company prior to the Effective Date shall continue to relate only to such assets and properties of the Transferee Company and shall not extend or attach to any of the assets and properties of the Transferor Companies (except those assets and properties which are encumbered on account of loans taken by the Transferee Company by creating charge over the assets of the Transferor Companies, if any) transferred to and vested in the Transferee Company by virtue of this Scheme.

4.2.7. Where any of the debt, liabilities, contingent liabilities, duties and obligations of the Transferor Companies as on the Appointed Date, deemed to be transferred to the Transferee Company have been discharged by the Transferor Companies, as the case may be, after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on account of the Transferee Company, and all loans raised and used and all liabilities and obligations incurred by the Transferor Companies after the Appointed Date and prior to the Effective Date shall be deemed to have been raised, used or incurred for and on behalf of the Transferee Company and to the extent they are outstanding on the Effective Date, shall also without any further act, deed, matter or thing shall stand transferred to the Transferee Company and shall become the liabilities and obligations of the Transferee Company which undertakes to meet, discharge and satisfy the same and it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such loans and liabilities have arisen in order to give effect to the provisions of this Clause.

4.2.8. All the assets and properties which are acquired by the Transferor Companies, on or after the Appointed Date but prior to the Effective Date shall be deemed to be and shall become the assets and properties of the Transferee Company and shall under the provisions of Sections 230 to 232 and all other applicable provisions of the Act, without any further act, instrument or deed, be and stand transferred to and vested in and be deemed to have been transferred to and vested in the Transferee Compan

upon the coming into effect of this Scheme pursuant to the provisions of Sections 230 to 232 of the Act.

4.2.9. All unutilised tax credits (including balances or advances), benefits, subsidies, grants, special status and other benefits or privileges of whatsoever nature under laws pertaining to income-tax, wealth tax, sales tax / value added tax, service tax, Central Goods and Service Tax, Integrated Goods and Service Tax, State Goods and Service Tax, Union Territory Goods and Service Tax, Goods and Service Tax Compensation Cess, excise duty, customs duty or any other levy of similar nature, which the Transferor Companies is eligible and entitled to, shall be transferred and available to the Transferee Company as an integral part of the Scheme.

4.2.10. All cheques and other negotiable instruments and payments orders received in the name of the Transferor Companies after the Effective Date shall be accepted by the bankers of the Transferee Company and credited to the account of the Transferee Company. Similarly, the bankers of the Transferee Company shall honour cheques issued by the Transferor Companies for payment on or after the Appointed Date and presented after the Effective Date.

4.2.11. Upon the Scheme being sanctioned and taking effect, the Transferee Company shall be entitled to operate all bank accounts related to the Transferor Companies and all cheques, drafts, pay orders, direct and indirect tax balances and/or payment advices of any kind or description issued in favour of the Transferor Companies, either before or after the Appointed Date, or in future, may be deposited with the bank of the Transferee Company and credit of all receipts thereunder will be given in the accounts of the Transferee Company.

4.2.12. Loans, advances and other obligations if any, due or which may at any time in future become due between the Transferor Companies and the Transferee Company shall stand cancelled and there shall be no liability in that behalf on either party.

4.2.13. Without prejudice to the provisions of the foregoing clauses and upon the Scheme becoming effective, the Transferor Companies and the Transferee Company shall execute all such instruments or documents or do all the acts and deeds as may be required, including the filing of necessary particulars and/or modification(s) of charge, if any, with the Registrar of Companies, Ahmedabad, Gujarat and to give formal effect to the above provisions, if required.

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4.3 This Scheme has been drawn up to comply with the conditions relating to 'Amalgamation' as specified under Section 2(1B) of the Income-tax Act, 1961. If any terms or provisions of the Scheme is/are inconsistent with the provisions of the said section 2(1B), such provisions of said section 2(1B) shall prevail and the Scheme shall stand modified to the extent necessary to comply with the said section 2(1B). Such modification will, however, not affect the other parts of the Scheme.

5. CONSIDERATION

5.1 Upon this Scheme becoming effective and in consideration for amalgamation of the Transferor Company 1 and Transferor Company 2 with the Transferee Company, the Transferee Company shall without any further application or deed, issue and allot to the shareholders of the Transferor Company 1 and Transferor Company 2, holding fully paid up shares in the Transferor Company 1 and Transferor Company 2 and whose names appears in the Register of Members of the Transferor Company 1 and Transferor Company 2 as on the Effective Date or his/her/its heirs, executors, administrators or the successors in title, as may be recognised by the Board of Directors of the Transferee Company, fully paid up equity shares in the following fair share swap ratio:

To the shareholders of Transferor Company 1 -

"10 (Ten) fully paid up equity shares of INR 10/- (Indian Rupees Ten only) of the Transferee Company shall be issued and allotted for every 366 (Three Hundred and Sixty Six) equity shares of INR 10/- (Indian Rupees Ten only) each held in the Transferor Company 1."

To the shareholders of Transferor Company 2 -

"10 (Ten) fully paid up equity shares of INR 10/- (Indian Rupees Ten only) of the Transferee Company shall be issued and allotted for every 1,040 (One thousand and Forty) equity shares of INR 1/- (Indian Rupees One only) each held in the Transferor Company 2."

5.2 The New Equity Shares to be issued to the members of the Transferor Companies as per Clause 5.1 above shall be subject to the Memorandum of Association and Articles

of Association of the Transferee Company. The New Equity shares shall rank pari-passu in all respects, including dividend, with the existing shares of the Transferee Company.

5.3 Any fraction arising out of allotment of equity shares as per Clause 5.1 shall be rounded off to the next highest integer.

5.4 The approval of this Scheme by the shareholders of the Transferor Companies and the Transferee Company under Sections 230 to 232 of the Act shall be deemed to have the approval under Sections 13, 14 and 62 of the Act and other applicable provisions of the Act and any other consents and approvals required in this regard.

6. ACCOUNTING TREATMENT

6.1 On the Scheme becoming effective, with effect from the Appointed Date, the Transferee Company would follow the method as prescribed in the Accounting Standard 14: 'Accounting for Amalgamations' issued by the Institute of Chartered Accountants of India.

a) The assets and liabilities as on the Appointed Date recorded in the books of the Transferor Companies shall stand transferred to and vested in the Transferee Company at their fair values;

b) The investment held by the Transferee Company in the equity share capital of the Transferor Company 2 shall stand cancelled and there shall be no further rights or obligations in that behalf;

c) The inter-corporate deposits / debentures / loans and advances / receivables and payables / balance outstanding between the Transferee Company and the Transferor Companies will stand cancelled and there shall be no further obligation in that behalf;

d) The difference being the excess, if any, of the fair value of assets over the fair value of liabilities and after considering adjustments as mentioned in sub-clauses (b) and (c) above shall be credited to the Capital reserve of the Transferee

Company. The deficit, if any, shall be debited to Goodwill Account of the Transferee Company.

6.2 If considered appropriate for the purpose of application of uniform accounting methods and policies between the Transferor Companies and the Transferee Company, the Transferee Company may make suitable adjustments and reflect the effect thereof in the Profit and Loss Account of the Transferee Company.

7. COMBINATION OF AUTHORISED SHARE CAPITAL

7.1 Upon this Scheme becoming effective, the authorised share capital of the Transferee Company shall automatically stand increased without any further act, instrument or deed on the part of the Transferee Company including payment of stamp duty and fees payable to Registrar of Companies, by the authorised share capital of the Transferor Companies aggregating to INR 36,50,00,000/- (Indian Rupees Thirty Six Crores and Fifty Lakhs only).

7.2 Consequently, the Memorandum of Association and Articles of Association of the Transferee Company (relating to the authorised share capital) shall, without any further act, instrument or deed, be and stand altered, modified and amended, and the consent of the shareholders to the Scheme, whether at a meeting or otherwise, shall be deemed to be sufficient for the purposes of effecting this amendment, and no further resolution(s) under Sections 13, 14 and 61 of the Companies Act, 2013 and other applicable provisions of the Act would be required to be separately passed, as the case may be, and for this purpose the stamp duties and fees paid on the authorised share capital of the Transferor Companies shall be utilized and applied to the increase of authorised share capital of the Transferee Company and there would be no requirement for any further payment of stamp duty and/or fee by the Transferee Company for increase in the authorised share capital to that extent.

7.3 Pursuant to the Scheme becoming effective and consequent amalgamation of the Transferor Companies with the Transferee Company, the authorised share capital of the Transferee Company would be increased and reclassified as under:

Particulars	Amount (INR)
Authorised Capital	
5,22,50,000 Equity Shares of INR 10/- each	52,25,00,000
12,50,000 Preference Shares of INR 100/- each	12,50,00,000
Total	**64,75,00,000**

The Memorandum of Association and Articles of Association of the Transferee Company shall be amended as may be required under the Act.

8. LEGAL PROCEEDINGS

8.1 If any suit, appeal or other proceeding of whatever nature by or against the Transferor Companies is pending, the same shall not abate or be discontinued or in any way be prejudicially affected by reason of the amalgamation or by anything contained in this Scheme, but the said suit, appeal or other legal proceedings may be continued, prosecuted and enforced by or against the Transferee Company, as the case may be, in the same manner and to the same extent as it would or might have been continued, prosecuted and enforced by or against the Transferor Companies as if this Scheme had not been made.

8.2 In case of any litigation, suits, recovery proceedings which are to be initiated or may be initiated by or against the Transferor Companies, the Transferee Company shall be substituted and deemed to be party thereto and any payment and expenses made thereto shall be the liability of the Transferee Company.

9. CONTRACTS, DEEDS AND OTHER INSTRUMENTS

9.1 Subject to the other provisions of this Scheme, all contracts, deeds, bonds, insurance, letters of intent, undertakings, arrangements, policies, agreements, services, guarantees, collaterals and securities and other instruments, if any, of whatsoever nature pertaining to the Transferor Companies to which the Transferor Companies is a party and subsisting or having effect on the Effective Date, shall be in full force and effect against or in favour of the Transferee Company, as the case may be, and may be enforced by or against the Transferee Company as fully and effectually as if,

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instead of the Transferor Companies, the Transferee Company had been a party thereto.

9.2 The Transferee Company shall enter into and/or issue and/or execute deeds, writings or confirmations or enter into any tripartite arrangements, confirmations or novations, to which the Transferor Companies will, if necessary, also be party in order to give formal effect to the provisions of this Scheme, if so required or becomes necessary. The Transferee Company shall be deemed to be authorised to execute any such deeds, writings or confirmations on behalf of the Transferor Companies and to implement or carry out all formalities required on the part of the Transferor Companies to give effect to the provisions of this Scheme.

10. TREATMENT OF STAFF, WORKMEN AND EMPLOYEES

10.1 On the Scheme becoming operative, all employees of the Transferor Companies in service on the Effective Date shall be deemed to have become employees of the Transferee Company without any break in their service and on the basis of continuity of service and the terms and conditions of their employment with the Transferee Company shall not be less favourable than those applicable to them in the Transferor Companies.

10.2 The Transferee Company agrees that the services of all such employees with the Transferor Companies up to the Effective Date shall be taken into account for purposes of all retirement benefits to which they may be eligible in the Transferor Companies on the Effective Date.

10.3 It is expressly provided that, on the Scheme becoming effective, the Provident Fund, Gratuity Fund, Superannuation Fund or any other Special Fund or Trusts created or existing for the benefit of the staff, workmen and employees of the Transferor Companies shall become the Trusts/ Funds of the Transferee Company for all purposes whatsoever in relation to the administration or operation of such Fund or Funds or in relation to the obligation to make contributions to the said Fund or Funds in accordance with the provisions thereof as per the terms provided in the respective Trust Deeds, if any, to the end and intent that all rights, duties, powers and obligations of the Transferor Companies in relation to such Fund or Funds shall become those of

the Transferee Company. It is clarified that the services of the staff, workmen and employees of the Transferor Companies will be treated as having been continuous for the purpose of the said Fund or Funds.

11. CONDUCT OF BUSINESSES UNTIL EFFECTIVE DATE

With effect from the Appointed Date and upto and including the Effective Date:

11.1 The Transferor Companies shall carry on and be deemed to have been carrying on their business and activities and shall possess, hold, alienate, dispose, charge, mortgage, encumber all of their properties, undertakings and assets for and on account of and in trust for the Transferee Company.

11.2 All the profits or income accruing or arising to the Transferor Companies or expenditure or losses incurred by the Transferor Companies shall for all purposes be treated and deemed to be profits or income or expenditure or losses (as the case may be) of the Transferee Company.

11.3 The Transferor Companies shall not vary the terms and conditions of employment of any of the employees except in the ordinary course of business or without the prior consent of the Transferee Company or pursuant to any pre-existing obligation undertaken by the Transferor Companies as the case may be, prior to the Appointed Date.

12. SAVING OF CONCLUDED TRANSACTIONS

The transfer and vesting of businesses under Clause 4 above and the continuance of proceedings by or against the Transferor Companies above shall not affect any transaction or proceedings already concluded by the Transferor Companies before Effective Date, to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Companies in respect thereto as done and executed on behalf of itself.

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13. DISSOLUTION OF THE TRANSFEROR COMPANIES

On the Scheme becoming effective the Transferor Companies shall be dissolved without being wound up.

PART C – GENERAL TERMS & CONDITIONS APPLICABLE TO THIS SCHEME OF AMALGAMATION

14. APPLICATION TO THE NCLT

The Transferor Companies and the Transferee Company, if required, shall, with all reasonable dispatch, make applications to the NCLT or such other appropriate authority under Sections 230 to 232 of the Act, seeking orders for dispensing with or convening, holding and conducting of the meetings of the respective classes of the members and creditors of the Transferor Companies and the Transferee Company as may be directed by the NCLT or such other appropriate authority.

15. MODIFICATION / AMENDMENT TO THE SCHEME

Subject to approval of NCLT, the respective Board of Directors or Authorised Signatories of the Transferor Companies and the Transferee Company, may consent, on behalf of all persons concerned, to any modifications or amendments of the Scheme or to any conditions or limitations that the NCLT may deem fit to direct or impose or which may otherwise be considered necessary, desirable or appropriate by them (i.e. the Board of Directors) and solve all difficulties that may arise for carrying out the Scheme and do all acts, deeds and things necessary for putting the Scheme into effect. For the purpose of giving effect to this Scheme or to any modification thereof, the Board of Directors of the Transferor Companies and the Transferee Company be and are hereby authorised to give such directions and to take all such steps as may be necessary, desirable or proper to give effect to this Scheme and to resolve any doubt, difficulties whether by reason of any direction or orders of any other authorities or otherwise howsoever arising out of or under or by virtue of this Scheme and/or any matters concerning or connected therewith. No modification or amendment to the Scheme will be carried out or effected by the Board of Directors or Authorised Signatories without approaching the NCLT.

16. CONDITIONALITY OF THE SCHEME 247

The Scheme is conditional upon and subject to the following:

16.1 The Scheme being approved / consented to by requisite majorities in number and value of such classes of persons including the respective members and/or creditors, if required in accordance with directions given by the NCLT.

16.2 The sanction of this Scheme by the NCLT or any other appropriate authority under Sections 230 to 232 and other applicable provisions of the Act.

16.3 The certified copies of the order of NCLT under section 230 to 232 of the Act sanctioning the Scheme being filed with the Registrar of Companies, Ahmedabad, Gujarat.

17. EFFECT OF NON-RECEIPT OF APPROVALS/SANCTIONS

In the event of any of the said sanctions and approvals/consents referred to in the preceding Clause not being obtained and/or the Scheme not being sanctioned by the NCLT or such other competent authority and/or the order not being passed as aforesaid within such period or periods as may be agreed upon between the Transferor Companies and the Transferee Company by their Board of Directors (and which the Boards of Directors of the Transferor Companies and Transferee Company are hereby empowered and authorised to agree to and extend the Scheme from time to time without any limitation) failing which this Scheme shall stand revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any rights and/or liabilities which might have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law.

18. SEVERABILITY

If any part of this Scheme is found to be unworkable for any reason whatsoever, the same shall not, subject to the decision of the Board of Directors or authorised

signatories of the Transferor Companies and/or the Transferee Company, affect the validity or implementation of the other parts/provisions of this Scheme.

19. COSTS, CHARGES & EXPENSES

All costs, charges, taxes including duties, levies and all other expenses, if any (save as expressly otherwise agreed), incurred in carrying out and implementing this Scheme and matters incidentals thereto, shall be borne by the Transferee Company.

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Annexure "B"

BEFORE THE HON'BLE NATIONAL COMPANY LAW TRIBUNAL AT AHMEDABAD

CP (CAA) NO. 37 OF 2022
IN
CA(CAA) No.15 OF 2022

Saurashtra Infra and Power Private Limited
... Petitioner Company No.1/
Transferor Company No. 1

Saurashtra Ferrous Private Limited
... Petitioner Company No.2/
Transferor Company No. 2

Saurashtra Fuels Private Limited
...Petitioner Company No.3/
Transferee Company

PURSHIS

The present petition is filed seeking sanction of this Hon'ble Tribunal to a Scheme of Amalgamation of Saurashtra Infra and Power Private Limited and Saurashtra Ferrous Private Limited with Saurashtra Fuels Private Limited and their respective shareholders and creditors

By way of this purshis, the Petitioner Company No.1 and Petitioner No.2 i.e. the Transferor Companies beg to place on record their respective schedule of assets, which may please be taken on record.

Ahmedabad
Date: 12.12.2022

For **Thakkar & Pahwa**
Advocates for Petitioner Companies

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

SAURASHTRA INFRA AND POWER PRIVATE LIMITED

CIN: U45400GJ2005PTC097906

REGD. OFF.:- 202-Sarthik II, Near Kiran Motors Opp. Rajpath Club, Sarkhej-Gandhinagar Highway, Ahmedabad Ahmedabad GJ 380015

TEL:- 022 40467500

C.P. (CAA) No.37(AHM)2022
IN
CA (CAA) No.15(AHM)2022

SCHEDULE OF ASSETS

Name of the Transferor Company	Saurashtra Infra and Power Private Limited
Corporate Identification Number (CIN)	U45400GJ2005PTC097906
Registered Office	202-Sarthik II, Near Kiran Motors Opp, Rajpath Club, Sarkhej-Gandhinagar Highway, Ahmedabad – 380015, Gujarat.
Permanent Account Number (PAN)	AAJCS0161N
Tax Deduction & Collection Account Number (TAN)	RKTS04676A
GST Registration Number	24AAJCS0161N1Z8
Bank Account Details	Bank Name : HDFC Bank Ltd Branch: Nariman point Tulsiani Chambers Bank Address: 101-104, Tulsiani chamber, Free press journal marg, Nariman Point Mumbai C/A No.: 50200034041750 IFSC: HDFC0000001
Scheme	In the matter of Scheme of Amalgamation of Saurashtra Infra and Power Private Limited and Saurashtra Ferrous Private Limited with Saurashtra Fuels Private Limited and their respective shareholders
Appointed date	1st April, 2021

The following assets and liabilities of the Transferor Company are to be transferred to the Transferee Company:

Assets:

- Trade receivables
- Cash and Cash equivalents
- Short term loans and advances

Liabilities:

- Trade payables
- Other Current liabilities

For **Saurashtra Infra and Power Private Limited**

Director

Saurashtra Infra and Power Pvt. Ltd.

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SAURASHTRA FERROUS PRIVATE LIMITED

CIN: U27100GJ2005PTC079361

REGD. OFF.:- 202, C/O Sarthik-2, Opp. Rajpath Club, Sarkhej Gandhinagar Highway Ahmedabad 380015

TEL:- 022 40467500

C.P. (CAA) No.37(AHM)2022
IN
CA (CAA) No.15(AHM)2022

SCHEDULE OF ASSETS

Name of the Transferor Company	Saurashtra Ferrous Private Limited
Corporate Identification Number (CIN)	U27100GJ2005PTC079361
Registered Office	202-Sarthik II, Near Kiran Motors Opp. Rajpath Club, Sarkhej–Gandhinagar Highway, Ahmedabad – 380015, Gujarat.
Permanent Account Number (PAN)	AAJCS0160P
Tax Deduction & Collection Account Number (TAN)	MUMS48515F
GST Registration Number	24AAJCS0160P1Z5
Bank Account Details	Bank name – Punjab and Sindh Bank Branch – Mumbai Opera House Bank address – JSS road, ratandeep bldg., Girgaum road, Mumbai 400004 C/A number – 06311100101693 IFSC – PSIB0000117
Scheme	In the matter of Scheme of Amalgamation of Saurashtra Infra and Power Private Limited ('Transferor Company 1') and Saurashtra Ferrous Private Limited ('Transferor Company 2') with Saurashtra Fuels Private Limited ('Transferee Company') and their respective shareholders
Appointed date	1st April, 2021

The following assets and liabilities of the Transferor Company 2 are to be transferred to the Transferee Company:

Inventories:

Sr.No.	Particulars	INR
1.	Raw materials	16,68,168
2.	Consumables stores and spares	2,98,980

Non-Current Investments:

Sr.No.	Particulars	INR
1.	National saving certificates	5,000
2.	175300 Equity Share of Rs. 10 each – DKS Shipping Pvt Ltd	17,53,000

In addition to the above, following assets and liabilities of the Transferor Company 2 are to be transferred to the Transferee Company:

Assets:

- Long term loans and advances
- Trade receivables
- Cash and Cash equivalents
- Short term loan and advances

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Assets (including immovable properties in the state of Gujarat or elsewhere) belonging to the Transferor Company 2 as per the statutory records maintained by the relevant authority, shall be transferred to the Transferee Company pursuant to this Scheme.

Liabilities:

- Trade payables
- Other Current liabilities

For **Saurashtra Ferrous Private Limited**

SANJAYKUMAR CHIMANLAL UPADHYAY

Digitally signed by SANJAYKUMAR CHIMANLAL UPADHYAY
Date: 2022.12.12 10:08:53 +05'30'

SANJAYKUMAR CHIMANLAL UPADHYAY

Director

(01421571)

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